

M/s Raghu Prime Metal Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 April 2013 · Writ-C No. 21480 of 2013 · **Writ disposed; bills henceforth as per Supply Code cycle if no payment default.**

HEADNOTE

On a complaint that a distribution licensee had issued bills contrary to the billing cycle in the U.P. Electricity Supply Code, 2005, the High Court, without examining the Nigam's explanation that the cycle was changed for fear the industrial consumer would abscond, directed that bills would henceforth follow the Code cycle provided the consumer did not default in payment.

FACTUAL SUMMARY

The petitioner, M/s Raghu Prime Metal Pvt. Ltd., an industrial consumer, approached the Allahabad High Court complaining that electricity bills issued by Paschimanchal Vidyut Vitran Nigam Ltd. did not follow the billing cycle in the U.P. Electricity Supply Code, 2005. Counsel for the Nigam appeared and conceded that the cycle had been changed because of an apprehension that the petitioner unit would run away. The Court heard both sides.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::billing-cycle

billing cycle

HOLDING

Without going into merits, the Court directed the licensee henceforth to issue bills as per the billing cycle in the Electricity Supply Code, provided the consumer makes no default in payment. ¶ 1

FLAG order cites the Supply Code billing cycle without a numbered clause

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE COULD LAWFULLY ALTER THE BILLING CYCLE ON AN APPREHENSION THAT THE CONSUMER UNIT WOULD RUN AWAY

Court expressly declined to go into the merits. ¶ 1